

No. K-43022/73/2022-SEZ
Government of India
Ministry of Commerce and Industry
Department of Commerce
(SEZ Section)

Vanijya Bhawan, New Delhi
Dated the 12th January, 2023

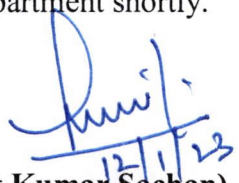
OFFICE MEMORANDUM

Subject: 113th meeting of the Board of Approval (BoA) for Special Economic Zones (SEZs)
Supplementary Agenda - regarding.

In continuation to this Department's O.M. of even number dated 7th January, 2023 on the above mentioned subject, the undersigned is directed to enclose herewith the Supplementary Agenda for the 113th meeting of the BoA for SEZs scheduled to be held on 7th January, 2023 at 11.00 A.M., Conference Room No. 427, Vanijya Bhawan, New Delhi. The Supplementary Agenda for the meeting has also been hosted on the website: www.sezindia.gov.in.

2. The time and weblink for the said meeting will be shared by this Department shortly.

Encl : As above


(Sumit Kumar Sachan)

Under Secretary to the Government of India

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To

1. Central Board of Excise and Customs, Member (Customs), Department of Revenue, North Block, New Delhi. (Fax: 23092628).
2. Central Board of Direct Taxes, Member (IT), Department of Revenue, North Block, New Delhi. (Telefax: 23092107).
3. Joint Secretary, Ministry of Finance, Department of Financial Services, Banking Division, Jeevan Deep Building, New Delhi (Fax: 23344462/23366797).
4. Shri Anil Agarwal, Additional Secretary, Department of Promotion of Industry and Internal Trade (DPIIT), Udyog Bhawan, New Delhi.
5. Joint Secretary, Ministry of Shipping, Transport Bhawan, New Delhi.
6. Joint Secretary (E), Ministry of Petroleum and Natural Gas, Shastri Bhawan, New Delhi
7. Joint Secretary, Ministry of Agriculture, Plant Protection, Krishi Bhawan, New Delhi.
8. Ministry of Science and Technology, Sc 'G' & Head (TDT), Technology Bhavan, Mehrauli Road, New Delhi. (Telefax: 26862512)
9. Joint Secretary, Department of Biotechnology, Ministry of Science and Technology, 7th Floor, Block 2, CGO Complex, Lodhi Road, New Delhi - 110 003.

10. Additional Secretary and Development Commissioner (Micro, Small and Medium Enterprises Scale Industry), Room No. 701, Nirman Bhavan, New Delhi (Fax: 23062315).
11. Secretary, Department of Electronics & Information Technology, Electronics Niketan, 6, CGO Complex, New Delhi. (Fax: 24363101)
12. Joint Secretary (IS-I), Ministry of Home Affairs, North Block, New Delhi (Fax: 23092569)
13. Joint Secretary (C&W), Ministry of Defence, Fax: 23015444, South Block, New Delhi.
14. Joint Secretary, Ministry of Environment and Forests, Pariyavaran Bhavan, CGO Complex, New Delhi – 110003 (Fax: 24363577)
15. Joint Secretary & Legislative Counsel, Legislative Department, M/o Law & Justice, A-Wing, Shastri Bhavan, New Delhi. (Tel: 23387095).
16. Department of Legal Affairs (Shri Hemant Kumar, Assistant Legal Adviser), M/o Law & Justice, New Delhi.
17. Secretary, Department of Chemicals & Petrochemicals, Shastri Bhawan, New Delhi
18. Joint Secretary, Ministry of Overseas Indian Affairs, Akbar Bhawan, Chanakyapuri, New Delhi. (Fax: 24674140)
19. Chief Planner, Department of Urban Affairs, Town Country Planning Organisation, Vikas Bhavan (E-Block), I.P. Estate, New Delhi. (Fax: 23073678/23379197)
20. Director General, Director General of Foreign Trade, Department of Commerce, Udyog Bhavan, New Delhi.
21. Director General, Export Promotion Council for EOUs/SEZs, 8G, 8th Floor, Hansalaya Building, 15, Barakhamba Road, New Delhi – 110 001 (Fax: 223329770)
22. Dr. Rupa Chanda, Professor, Indian Institute of Management, Bangalore, Bennerghata Road, Bangalore, Karnataka
23. Development Commissioner, Noida Special Economic Zone, Noida.
24. Development Commissioner, Kandla Special Economic Zone, Gandhidham.
25. Development Commissioner, Falta Special Economic Zone, Kolkata.
26. Development Commissioner, SEEPZ Special Economic Zone, Mumbai.
27. Development Commissioner, Madras Special Economic Zone, Chennai
28. Development Commissioner, Visakhapatnam Special Economic Zone, Visakhapatnam
29. Development Commissioner, Cochin Special Economic Zone, Cochin.
30. Development Commissioner, Indore Special Economic Zone, Indore.
31. Development Commissioner, Mundra Special Economic Zone, 4th Floor, C Wing, Port Users Building, Mundra (Kutch) Gujarat.
32. Development Commissioner, Dahej Special Economic Zone, Fadia Chambers, Ashram Road, Ahmedabad, Gujarat
33. Development Commissioner, Navi Mumbai Special Economic Zone, SEEPZ Service Center, Central Road, Andheri (East), Mumbai – 400 096
34. Development Commissioner, Sterling Special Economic Zone, Sandesara Estate, Atladra Padra Road, Vadodara - 390012
35. Development Commissioner, Andhra Pradesh Special Economic Zone, Udyog Bhawan, 9th Floor, Siripuram, Visakhapatnam – 3
36. Development Commissioner, Reliance Jamnagar Special Economic Zone, Jamnagar, Gujarat
37. Development Commissioner, Surat Special Economic Zone, Surat, Gujarat
38. Development Commissioner, Mihan Special Economic Zone, Nagpur, Maharashtra
39. Development Commissioner, Sricity Special Economic Zone, Andhra Pradesh.

40. Development Commissioner, Mangalore Special Economic Zone, Mangalore.
41. Government of Andhra Pradesh, Principal Secretary and CIP, Industries and Commerce Department, A.P. Secretariat, Hyderabad – 500022. (Fax: 040-23452895).
42. Government of Telangana, Special Chief Secretary, Industries and Commerce Department, Telangana Secretariat Khairatabad, Hyderabad, Telangana.
43. Government of Karnataka, Principal Secretary, Commerce and Industry Department, Vikas Saudha, Bangalore – 560001. (Fax: 080-22259870)
44. Government of Maharashtra, Principal Secretary (Industries), Energy and Labour Department, Mumbai – 400 032.
45. Government of Gujarat, Principal Secretary, Industries and Mines Department Sardar Patel Bhawan, Block No. 5, 3rd Floor, Gandhinagar – 382010 (Fax: 079-23250844).
46. Government of West Bengal, Principal Secretary, (Commerce and Industry), IP Branch (4th Floor), SEZ Section, 4, Abanindranath Tagore Sarani (Camac Street) Kolkata – 700 016
47. Government of Tamil Nadu, Principal Secretary (Industries), Fort St. George, Chennai – 600009 (Fax: 044-25370822).
48. Government of Kerala, Principal Secretary (Industries), Government Secretariat, Trivandrum – 695001 (Fax: 0471-2333017).
49. Government of Haryana, Financial Commissioner and Principal Secretary), Department of Industries, Haryana Civil Secretariat, Chandigarh (Fax: 0172-2740526).
50. Government of Rajasthan, Principal Secretary (Industries), Secretariat Campus, Bhagwan Das Road, Jaipur – 302005 (0141-2227788).
51. Government of Uttar Pradesh, Principal Secretary, (Industries), Lal Bahadur Shastri Bhawan, Lucknow – 226001 (Fax: 0522-2238255).
52. Government of Punjab, Principal Secretary Department of Industry & Commerce Udyog Bhawan), Sector -17, Chandigarh- 160017.
53. Government of Puducherry, Secretary, Department of Industries, Chief Secretariat, Puducherry.
54. Government of Odisha, Principal Secretary (Industries), Odisha Secretariat, Bhubaneshwar – 751001 (Fax: 0671-536819/2406299).
55. Government of Madhya Pradesh, Chief Secretary, (Commerce and Industry), Vallabh Bhavan, Bhopal (Fax: 0755-2559974)
56. Government of Uttarakhand, Principal Secretary, (Industries), No. 4, Subhash Road, Secretariat, Dehradun, Uttarakhand
57. Government of Jharkhand (Secretary), Department of Industries Nepal House, Doranda, Ranchi – 834002.
58. Union Territory of Daman and Diu and Dadra Nagar Haveli, Secretary (Industries), Department of Industries, Secretariat, Moti Daman – 396220 (Fax: 0260-2230775).
59. Government of Nagaland, Principal Secretary, Department of Industries and Commerce), Kohima, Nagaland.
60. Government of Chattishgarh, Commissioner-cum-Secretary Industries, Directorate of Industries, LIC Building Campus, 2nd Floor, Pandri, Raipur, Chhattisgarh (Fax: 0771-2583651).

Copy to: PPS to CS / PPS to AS (LSS) / PPS to JS (VB) / PPS to Dir (SNS).

**Supplementary agenda for the 113th meeting of the Board of Approval
for Special Economic Zones to be held on 17th January, 2023**

113.9: Request for co-developer status (three proposals)

113.9(i) Request of M/s. Vidur Infrastructure Private Limited for Co-Developer status in M/s. New Chennai Township Pvt. Ltd. SEZ at Seekinankuppam Village, Cheyyur Taluk, Kanchipuram District.

(i)	Name of the Developer & Location	M/s. New Chennai Township Pvt. Ltd. at Kanchipuram District
(ii)	Date of LoA of Developer	23.05.2007
(iii)	Sector	Light Engineering SEZ
(iv)	Date of notification	28.09.2007
(v)	Total notified area	125.002 Ha
(vi)	Proposed Co-developer	M/s Vidur Infrastructure Private Limited
(vii)	Details of Infrastructure facilities/authorized operations to be undertaken by the co-developer	Industries and Warehousing, Information Technology and ITES, Research and Science Park, International Sports facility, Health care and medical tourism, education and skill development and other allied activities
(viii)	Total area on which activities will be performed by the co-developer	105.87 acres
(ix)	Proposed investment by the co-developer	70 cr
(x)	Net worth of the co-developer	0.21 cr.
(xi)	Whether entered into a Co-developer agreement, if so date	Yes, 21.12.2022

Recommendation by DC, MEPZ SEZ:

DC, MEPZ SEZ has recommended the proposal for the consideration of the BoA.

113.9(ii) Request of M/s. Vidur Infrastructure Private Limited for Co-Developer status in M/s. New Chennai Township Pvt. Ltd. SEZ at Seekinankuppam Village, Cheyyur Taluk, Kanchipuram District.

(i)	Name of the Developer & Location	M/s. New Chennai Township Pvt. Ltd. at Kanchipuram District
(ii)	Date of LoA of Developer	23.05.2007
(iii)	Sector	Multi Services SEZ
(iv)	Date of notification	23.11.2007
(v)	Total notified area	121.94 Ha
(vi)	Proposed Co-developer	M/s Vidur Infrastructure Private Limited
(vii)	Details of Infrastructure facilities/authorized operations to be	Industries and Warehousing, Information Technology and ITES, Research and

	undertaken by the co-developer	Science Park, International Sports facility, Health care and medical tourism, education and skill development and other allied activities
(viii)	Total area on which activities will be performed by the co-developer	244.55 acres
(ix)	Proposed investment by the co-developer	120 cr
(x)	Net worth of the co-developer	0.21 cr.
(xi)	Whether entered into a Co-developer agreement, if so date	Yes, 21.12.2022

Recommendation by DC, MEPZ SEZ:

DC, MEPZ SEZ has recommended the proposal for consideration of the BoA.

113.9(iii) Request of M/s. Venus Green Build LLP, Ahmedabad for approval as Co-Developer in Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

(i)	Name of the Developer & Location	M/s. GIFT SEZ Limited, Villages Ratanpur and Phirapur, District Gandhinagar, Gujarat
(ii)	Date of LoA of Developer	07.01.2008
(iii)	Sector	Multi-services
(iv)	Date of notification	18.08.2011
(v)	Total notified area	105.4386 Ha
(vi)	Proposed Co-developer	M/s. Venus Green Build LLP
(vii)	Details of Infrastructure facilities/authorized operations to be undertaken by the codeveloper	The applicant proposes to construct and operate SEZ building for units to undertake services/authorized operations in the processing area of GIFTSEZ.
(viii)	Total area on which activities will be performed by the co-developer	3,80,000 square feet
(ix)	Proposed investment by the co-developer	Rs.209.68 cr
(x)	Net worth of the co-developer	Rs.948.75 cr
(xi)	Whether entered into a Co-developer agreement, if so date	Yes. Draft agreement has been submitted.

DC, GIFT SEZ has informed that at present in GIFT SEZ, Gandhinagar, there are three co-developers namely, (i) M/s Volupia Developers Private Limited (ii) M/s Brigade (Gujarat) Projects Private Limited and (iii) M/s ATS Savvy Developers LLP; these approved co-developers have constructed buildings for use by the SEZ units. The built-up space in these buildings are almost allotted/used, thus the need for new buildings have arisen.

The GIFT-multi-services SEZ, Gandhinagar is functional with over 400 plus broad sector services units approved including the financial services units of Banks, Insurance

companies, Stock market entities, related units aviation products/services leasing companies, other ancillary services units, and upcoming areas of business (like Bullion) exchanges, maritime services units, which requires additional built-up area/premises for such approved entities.

Recommendation by DC, GIFT SEZ: -

In view of the increase in economic activity and other developments at GIFT-SEZ, Gandhinagar, this office recommends the proposal of M/s. Venus Green Build LLP, Ahmedabad as a Co-Developer, for construction of building and related infrastructure for SEZ

and IFSC units, 3,80,000 square feet built-up area at Plot No. 13-A, Block-13 within GIFT-SEZ, subject to approval by the Board of Approval.

113.10: Request for extension of LoA of unit (one proposal)

113.10(i) Request of M/s. Kanam Latex Industries Private Limited, a Unit in M/s. AMRL Hi-Tech City Ltd., Multi-product SEZ at Nanguneri, Tirunelveli District, Tamil Nadu for extension of LoA from 01.03.2023 to 29.02.2024.

LoP issued on (date) : 14.02.2018

Nature of business of the unit: Manufacturing of various Gloves

No. of extensions : 3

LoP valid upto (date) : 28.02.2023

Recommended : For further extension from 01.03.2023 to 29.02.2024

Present progress:

a. Details of Business Plan: -

S. No.	Type of cost	Proposed (₹ in Lakh)
1	Investment	3000
2	Plant & Machinery	2000
3	Raw Material	16250
4	FOB Value of Export	23000
5	FE Outgo	18250
6	NFEE	4750

(b) Incremental investment since last extension: -

S. No.	Type of cost	Total Investment made so far (₹ in lakh)	Incremental investment since last extension (₹ in lakh)
1	Land	4793	4566 (Additional)

	Total	4793	4566 (Additional)
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(c) Details of physical progress till date: -

S. No.	Authorized activity	% completion	% completion during last one year	Deadline for completion of balance work
1	Infrastructure	65	64	Feb / Mar 2023
2	Machinery	25	25	Aug / Sep 2023

Detailed reasons for delay:

The reasons submitted by the Unit for not starting their activities given by them are as under: -

They have started procurement of goods for the Civil Work, Administration Office since October 2021 and Factory and process area shed construction more or less completed, further to that Six Imports of Machinery Parts has arrived at their facility to the tune of 211.26 Crore and balance materials are in Transit and all machinery will reach their facility on or before 31-01-2023.

After the New Year 2023 technical people from Malaysia will reach their site to start the commissioning of their plant and by mid-January 2023 erection work will start.

They have stated regarding the procurement of domestic machines and accessories, they have placed orders with the suppliers for SS Tank, Chiller, Screw Compressors, Tumble Dryers- Generators, ETP 550 KLT, Thermic Fluid Heater and all will reach the facility earliest by March 2023.

They have also stated that there was unprecedented delay in despatch and arrival of Import Machinery from Malaysia, which resulted delay in erection of Machinery. They have assured that on renewal of LOA, they will start their commercial production well within that date.

Recommendation by DC: -

DC, MEPZ has recommended the proposal for the consideration of the BoA.

Item No. 113.11: Miscellaneous Cases (two)

113.11(i) Request of M/s. Unrivalled Infrastructure Private Limited, a co-developer in M/s. Arshiya Limited-FTWZ at Panvel, Raigad, Maharashtra, for increase in area for providing Infrastructure facilities.

M/s. Unrivalled Infrastructure Private Limited was granted co-developer status on 05.08.2021 in M/s. Arshiya Limited-FTWZ at Panvel, Raigad, Maharashtra for providing infrastructure facilities for an area of 2.690 Hectares.

Now, the co-developer has applied for increase in area from 0.0881 hectares to 2.7781 hectares. DC, SEEPZ has stated that the co-developer has informed the following reasons for increase in area:

1. Warehouse size is increased due to addition of temperature control room Size-40x24.25 Meter-970 Sq. Meter.
2. Due to addition of temperature control room, they shifted warehouse 4 Meters towards warehouse No. 3 (south side), to get the minimum clearance (6 Meter) as per building by laws from the existing compound wall. Thus addition of Size - 4x20.25 meter (881 Sq.Meter) plot area has been added.
3. Revised area after addition of 881 Sq. Meter (0.0881 hectare) is 27781 Sq. Meter (2.7781 hectares).

The Draft Co-developer agreement entered into with the developer has been provided by the Co-developer.

Inspection was carried out by Specified Officer, Arshiya-SEZ and the Specified Officer verified the proposed increase area 0.0881 Ha for providing infrastructure facilities in Arshiya FTWZ and found it in order.

Recommendation by DC SEEPZ SEZ:

DC, SEEPZ has recommended the proposal for consideration of the BoA.

113.11(ii) Request of M/s. State Industries Promotion Corporation of Tamil Nadu Limited (SIPCOT), Hi-Tech SEZ at Sriperumbudur Taluk, Kancheepuram District, Tamil Nadu, for relaxation of contiguity criteria for Partial de- notification of 20.36.0 Hectares (50.313 Acres).

M/s. SIPCOT was granted formal approval on 23.06.2006 for setting up of an SEZ for Electronic/Telecom Hardware and Support Services including Trading and Logistics Operations at SIPCOT Industrial Park, Sriperumbudur Taluk, Kancheepuram District, Tamil Nadu. The SEZ stands notified over an area of 97.785 Ha.

Now, M/s. SIPCOT has submitted an application for relaxation of contiguity criteria in SEZ area to construct Foot Over Bridge (FOB) for partial de-notification of Plot No.M-7 & M-13 measuring 20.23.3 hectares (50 acres) allotted to M/s. Container Corporation of India Limited —along with SIPCOT Road area 0.127 hectares (0.313 acres) totally 20.360 hectares (50.313 acres).

In the Joint Inspection of the site conducted by the Officials from SIPCOT, MEPZ, CONCOR and Customs on 02-09-2021 and 19-05-2022, it has been decided to construct a Foot Over Bridge (FOB) in 30 Mtr road for ensuring contiguity of SEZ land. SIPCOT stated that for the construction of the above Foot Over Bridge, M/s. Container Corporation of India Ltd. has given their consent for carrying out the FOB construction. In this regard, SIPCOT undertakes to construct Foot Over Bridge in the 30 mtr. road subject to remittance of entire construction cost by M/s. CONCOR as agreed by them.

Rule Position and guidelines: In terms of sub-rule (2) of the rule 7 of the SEZ Rules, 2006:

(2) The identified area shall be contiguous and vacant and it shall have no public thoroughfare

Provided that the Board may relax any or all of the conditions, except the condition regarding identified area to be a vacant land, specified in this sub-rule on a case to case basis on merits for reasons to be recorded in writing and with such conditions as the Board may decide.

Further, as per DoC's Instruction No. 27 dated 18.10.2009 condition of contiguity may be relaxed by the Board in respect of SEZs subject to the following conditions:

- (i) The developer shall maintain contiguity by dedicated security gates/over bridges/underpass/culverts and also fence side of the road facing the processing area,
- (ii) No tax benefits would be available for measures taken to establish contiguity,
- (iii) The entire processing area would be located on one side of the National Highway,
- (iv) The formal approval from authorities concerned like NHAI and others would be submitted to the Department of Commerce and work for establishing contiguity would be started only after obtaining the requisite approvals.
- (v) No LoA for any SEZ unit will be issued till the entire measures to establish contiguity and securitization of the processing area are completed.
- (vi) the movement shall be restricted between the two SEZs till contiguity is established and the present systems will continue

In the instant case, the Developer undertakes to construct a Foot Over Bridge (FOB) in the 30 Mtr road for ensuring contiguity of SEZ land.

Recommendation by DC: -

DC, MEPZ has recommended the proposal for consideration of the BoA.

113.12: Appeal (one)

In terms of Rule 55 of the SEZ Rules, 2006, *any person aggrieved by an order passed by the Approval Committee under section 15 or against cancellation of Letter of Approval under section 16, may prefer an appeal to the Board in the Form J.*

113.12(i) Appeal under Rule 55 filed by M/s. Kkalpana Industries (India) Limited against the decision of DC, Falta SEZ regarding non-renewal of LoA of their plastic recycling unit.

Brief of the case: M/s. Kkalpana Industries (India) Limited was granted LoA on 26.03.1997 for setting up of an SEZ Unit in Falta SEZ. DC, Falta SEZ vide letter dated 14.12.2022 conveyed the decision to the Unit that on examination of the records available with FSEZ, report of Specified Officer, FSEZ Customs, Data of NSDL and documents submitted by the Unit, it is found that the Unit have not fulfilled all the 3 (three) Terms & Conditions (T&C) as specified by the Board of Approval in its 112th meeting held on 29.10.2022 for renewal of LoA of Plastic Recycling units for a period of 5 (five) years w.e.f. 27.08.2022 to 26.08.2027

on temporary basis. Hence, further the Renewal of Letter of Approvals (LoAs) could not be considered in respect of the plastic recycling unit namely M/s. Kkalpana Industries (India) Ltd. The appeal has been filed against the decision of DC, Falta SEZ conveyed vide letter dated 14.12.2022.

Contentions of the Appellant: The following reasons have been submitted by the unit as to why the decision of DC, FSEZ needs review: -

- i. Non-consideration of material facts and documents/representations submitted by the appellant from time to time.
- ii. Compliance and performance of appellant with regards to the conditions set by the BoA, wrongly denied and disputed.
- iii. Decision adversely affects SEZ objectives. Leads to huge loss of employment and productivity.
- iv. Decision is contrary to Order of Hon'ble Calcutta High Court.
- v. No opportunity to be heard was afforded to the appellant before passing the Order.
- vi. Decision is arbitrary and discriminatory.
- vii. Decision is ultra-vires of the SEZ Act and Rules and liable to be set aside.

Observation of DC, Falta SEZ: The Eligibility Status of the unit as reported by the DC, Falta SEZ is as below:

S. No.	Name of the Unit	Conditions specified by the BoA			DC's Observation
		First Condition - Production	Second Condition - FOB Value	Third Condition - Undertaking	
1.	Kkalpana Industries (India) Ltd.	Yes 9437.35 MT	No	Yes	On being non-fulfilling of all the 3 conditions, LoA of the Unit has not been renewed.

The appeal is placed before the BoA for consideration.
